



कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)
मुख्य कार्यालय / Head Office
भविष्य निधि भवन, 14-भिकाजी कामा प्लेस, नई दिल्ली-110 066.
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No.: LC/9(3)2016/Analysis of Court Cases/

Date: 05.02.2016

05 FEB 2016

To

All Additional Central PF Commissioner (Zone)
All Officers-in-Charge of RO/SRO

Subject: Filing of Writ/Appeal/Review within limitation period

Sir

While reviewing the cases lost on technical grounds, it has been observed that many petitions are dismissed simply because they were filed after lapse of statutory time limit prescribed under Indian Limitations Act, 1962 or under the relevant High Court Rules or the Supreme Court Rules, 2013. In case of a review petition, the time limit prescribed is 30 days from the date of receipt of certified copy of the judgment.

2. Further, in case of a Writ Petition preferred from the judgment of the Appellate Tribunal before a High Court, though no statutory time limit is prescribed, to improve admissibility, it is strongly recommended that such a petition should be filed as soon as possible, efforts should be made to file within a period of 60 days from the date of passing of judgment.

3. Since every instance of loss in litigation involves long-term adverse ramification, it is, therefore, exhorted that the instructions contained in the instant circular should be attached adequate importance.

Yours faithfully

(Rajesh Bansal)

Addl. Central P.F. Commissioner (Hqrs.)

Copy for information to:

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6. NATRSS and All ZTIs
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8. Dy. Director (OL) for Hindi version.


(Sunil Kumar Yadav)
Regional P. F. Commissioner-II(Legal)

Yours faithfully,

(Rajesh Bansal)
Addl. Central P.F. Commissioner (Hqrs.)